

		was already dismissed from this case) or a phrase that does not identify any legal entity. (See ROA 125.) Notwithstanding Plaintiffs' contentions, an Answer was filed on 1/6/25 by "Defendant McKenna Volkswagen Huntington Beach," and that Answer has not been stricken. (ROA 20; see also ROA 125 "In any event, the Answer filed by McKenna Volkswagen Huntington Beach remains and that entity is still in the case.".) Accordingly, the Court does not find the motion moot. Defendant contends that the allegations of the third cause of action for negligent repair do not state a cause of action and, additionally, the claim is barred by the economic loss rule. Plaintiffs have offered no argument in opposition to Defendant's position. Failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue").) Accordingly, the motion is GRANTED with 20 days leave to amend. <i>Defendant to give notice.</i>
113	TBF Financial I, LLC vs. O'Connell, 24-01383167	Tentative Ruling is available as reflected in the 8/27/2026 minute order. The Case Management Conference will take place on 9/10/2026 at 1:30 p.m.